

PERFORMANCE WORK STATEMENT (PWS)
FOOD SERVICE ATTENDANT SERVICES FOR USN DINING FACILITIES
IN VENTURA COUNTY, CA
FOR
COMMANDER NAVY REGION SOUTHWEST

PART 1: GENERAL INFORMATION

1. GENERAL: This is a non-personnel services contract to provide Food Service Attendant services for USN Dining Facilities located in Naval Base Ventura County in support of Commander Navy Region South West (CNRSW). The contractor shall provide personnel, supervision, and any items and services necessary to perform Food Service Attendant services as defined in this Performance Work Statement except for those items specified as government furnished property and services.

1.1 **Description of Services/Introduction:** The Contractor shall perform the requirements in this PWS and conform to the professional standards identified in this contract. Furthermore, the Contractor shall perform in accordance with commercial standards and comply with all applicable federal, state and local laws, regulations, instructions, and directives identified in this PWS.

1.2 **Background:** CNRSW operates two dining facilities (also referred to as “general mess” or “galley”) located at Naval Base Ventura County (NBVC) Port Hueneme and Point Mugu. Both facilities are maintained in accordance with NAVSUP P-486 Food Service Management.

Naval Base Ventura County galleys are "under the operational control of the Commanding Officer ... of the shore activity who provides staffing and funding for that operation (NAVSUP P-486 – Food Service Management (Nov 2020), par. 1100 or most current version)." This function is delegated to the Food Service Officer (FSO) – i.e. military officer or senior enlisted, assigned to each galley. Decisions made by FSO will be communicated to contractor via the COR. FSO cannot make any changes to this contract nor provide direction to the contractor. FSO sign and submit all financial returns, maintain all accountable documents, conduct inventory, maintain equipment, set Navy's food and supply requirements, and authorize and procure food supplies. Day to day, FSO establish the menus, ensure overall food preparation by Navy Culinary Specialists, and ensure proper storage of food. In form and fact, FSO operate the galleys.

Under the P-486, there are four organizational branches in the general mess functions to include: Records, Food Preparation, Subsistence, and Mess Services branch. CNRSW does not include the day-to-day operations under any of the four organizational branches aforementioned, as such, contractor support is required.

1.3 **Scope:** The contractor shall provide Food Service Attendant services at CNRSW dining facilities at NBVC Port Hueneme and Point Mugu. Contractor services include the following:

1.3.1 Cashier Services;

1.3.2 Food Service Attendant Services;

- 1.3.3 Scullery Services; and
- 1.3.4 Housekeeping Services
- 1.3.5 Vegetable Preparation Service for (Port Hueneme Galley Only)

1.4 Period of Performance: The period of performance shall be for one (1) Base Year of 12 months and four (4) 12-month option years. The Period of Performance reads as follows:

Period of Performance	Begin	End
Base Year	1 October 2026	30 September 2027
Option Year 1	1 October 2027	30 September 2028
Option Year 2	1 October 2028	30 September 2029
Option Year 3	1 October 2029	30 September 2030
Option Year 4	1 October 2030	30 September 2031

1.5 General Information:

1.5.1 Quality Control: The contractor shall establish, implement, and maintain a comprehensive Quality Control Program (QCP) to ensure all services are performed in accordance with this Performance Work Statement (PWS). The QCP must include detailed procedures to identify, prevent, and correct deficiencies, and to ensure the non-recurrence of defective services. The contractor's QCP is the primary mechanism for guaranteeing that all work meets the contract's standards and requirements. The QCP shall be submitted as part of the Technical Volume with the contractor's proposal and will be evaluated during the proposal review. Following the contract award, any modifications to the QCP must be submitted in writing to the Contracting Officer (CO) through the Contracting Officer's Representative (COR) for review and approval. Approved changes will be incorporated into the contract.

1.5.2 Quality Assurance: The Government shall evaluate the contractor's performance hereunder in accordance with the Quality Assurance Surveillance Plan (QASP). The purpose of the QASP is to ensure contractor compliance with the performance standards set forth in this contract. It defines the methodology for applying said standards, the frequency of surveillance, and all acceptable defect rates.

1.5.3 Recognized Federal Holidays:

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Independence Day	Christmas Day
Juneteenth National Independence Day	

1.5.4 Hours of Operation: The contractor is responsible for operating in accordance with Technical Exhibit (TE) 4, typically between 0500 and 1900, Monday through Sunday, including Federal Holidays. These hours do not apply when the Government facility is closed for local or national emergencies, administrative closings, or similar Government-directed events. COR-directed changes to serving hours within thirty (30) minutes of the TE 4 schedule will not result in a change to the contract price. (Extended meal hours for emergencies are addressed in Section 5.3.2.)

The Contractor shall, at all times, maintain an adequate workforce for the uninterrupted performance of all tasks. The stability and continuity of the workforce are essential.

1.5.5 Place of Performance: The work under this contract will be performed at the Naval Base Ventura County dining facilities located at Port Hueneme (32nd Street, Building 61, Port Hueneme, CA 93043) and Point Mugu (311 Main Road, Building 20, Point Mugu, CA 93041).

1.5.6 Type of Contract: The government will award a single Firm Fixed Price (FFP) contract type for this effort.

1.5.7 Security Requirements: No clearance is required. Only cashiers are required to be U.S. citizens.

1.5.8 Physical Security: The contractor shall be responsible for safeguarding all Government equipment, information and property provided for contractor use. At the close of each work period, Government facilities, equipment, and materials shall be secured. Equipment should be turned off if necessary. Cleaning equipment and materials should return to proper storage and locked up.

1.5.9 Key Control. The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the Contracting Officer. In the event keys, other than master keys, are lost or duplicated, the Contractor shall immediately notify the COR.

1.5.10 The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the COR and/or Contracting Officer.

1.5.11 Lock or Combinations. The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's Quality Control Plan.

1.5.12 Certifications: The contractor is responsible for ensuring all employees possess and maintain current Food Service Sanitation Training certificate during the performance of this contract.

1.5.13 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government. The Contracting Officers Representative (COR) may meet periodically with the contractor to review the contractor's performance. The primary focus of these meetings would be conflict resolution, should issues be incurred. Meetings may be requested by the COR, in writing (email is sufficient), at least 24 hours in advance and will include the context of issues to be discussed and meeting attendees. The Contracting Officer and/or other contracting personnel may attend.

1.5.14 Contracting Officer Representative (COR): The COR will be appointed by the Contracting Officer (KO) through Procurement Integrated Enterprise Environment (PIEE). The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure

that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting contract. The COR will be assisted by Technical Assistants (TA) who will be assigned via separate letters from CNRSW.

1.5.15 Key Personnel: The following personnel are considered key personnel by the government: Project Manager and Supervisor. Description, responsibilities, and qualifications as follows:

1.5.15.1 Project Manager. The contractor shall appoint an on-site Project Manager who is responsible for the total performance of this contract. This individual shall be stationed at Naval Base Ventura County (NBVC) and is vested with full authority to act on behalf of the contractor in all matters pertaining to daily operations. The duties of the Project Manager are non-delegable, although the appointed individual may concurrently hold a Supervisor position. The Project Manager shall be available to address contract matters from 0800 to 1630 Pacific Time, Monday through Friday, except on Federal holidays or during Government-directed closures. Furthermore, they must remain available by telephone to the COR and supervisors during all hours of galley operation.

1.5.15.1a Required Experience/Qualifications:

- i. Possess one or more years of experience managing a commercial or Government dining facility. It is preferable if this experience was obtained in the five-year period preceding submission of the proposal; and,
- ii. Possess one or more years' experience as a supervisor of a commercial or Government dining facility.

1.5.15.2 Supervisor. The Supervisor shall supervise daily performance of contractor employees for each dining facility to ensure good quality service, discipline, and overall prompt and polite customer service; coordinate work schedules with COR/Technical Assistant and communicate schedules to contractor employees promptly; conduct personnel inspections for clothing, sanitation, and individual cleanliness, and report inspection findings to the COR/TA each morning; conduct training as prescribed herein; conduct a walk-thru of all food service spaces with the TA or FSO daily for cleanliness and general appearance; and provide required reports and other items as listed in Technical Exhibit B – Deliverables Schedule.

Supervisors shall be assigned to act as on-site supervisor for contractor employees at each of the two (2) galleys to ensure effective and efficient performance of work in this PWS. *(Note- It is permissible for the Project Manager to also be assigned as Supervisor to one (1) of the two (2) galleys.)* The Supervisor may be dual-hatted within the galley that they supervise – i.e. may occupy the supervisory position and also perform services required in that galley.

1.5.15.2a Required experience/Qualifications:

- i. Possess one or more years of experience managing a commercial or Government dining facility. It is preferable if this experience was obtained in the five year period preceding submission of the proposal; and,
- ii. Possess one or more years' experience as a supervisor of a commercial or Government dining facility.

1.5.16 Identification of Contractor Employees: All contract personnel attending meetings, answering Government telephones, and working in other situations where their contractor status is not obvious to third parties are required

to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed.

1.5.17 Contractor Employees. As this is a non-personal services contract, the Government shall not exercise any supervision or control over the contractor personnel performing the services. The contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government. Contractor employees performing services under this order will be controlled, directed, and supervised at all times by management personnel of the contractor. Contractor management will ensure that employees properly comply with the performance work standards outlined in the PWS. Contractor employees will perform their duties independent of, and without the supervision of, any Government official or other Defense Contractor. The tasks, duties, and responsibilities set forth in the task order may not be interpreted or implemented in any manner that results in any contractor employee creating or modifying Federal policy, obligating the appropriated funds of the United States Government, overseeing the work of Federal employees, or otherwise violating the prohibitions set forth in Parts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR). The contractor is prohibited from hiring current Government employees or Active Duty military personnel to be used in the performance of this contract.

1.5.18 Base Access: The Contractor shall maintain proper security protocol in accordance with each base regulation. Security approval of all Contractor personnel will be obtained through the Base Security Office. The Contractor shall furnish the COR the names of all personnel hired to perform work under this contract. Identifications furnished for approved employees shall be returned to the COR by the Contractor immediately when such employees are no longer employed under this contract. The Contractor is responsible for the cost of their personnel Defense Biometric Identification System (DBIDS)

1.5.19 INVENTORY.

1.5.19.1 Initial Inventory. The Contractor and the COR/TA shall perform a joint inventory of galley spaces, furniture, equipment, dinnerware and silverware, and pots and pans that will be incorporated in this contract within fourteen calendar days from contract award date, within one week after exercise of each contract option, and one week before contract end date. The contractor shall submit a copy of Galley Space Listing Report, Equipment/Furniture Inventory Report, Dinnerware and Silverware Inventory Report, and Pots and Pans Inventory Report jointly signed by contractor and COR/TA within three (3) days after completion of inventory. Reports shall provide enough information (to include material condition for spaces and equipment) that they may be used by the Government for the administration of this contract, and for use by the contractor to be able provide proper accountability and planning for contract performance.

Notes:

- 1) Attachment 2 – Galley Layout Diagram & Measurement and lists galley spaces to be cleaned
- 2) Attachment 3 – Mess Gear Inventory lists the mess gear to be cleaned
- 3) Attachment 4 – Equipment/Furniture List lists government equipment and furniture to be cleaned
- 4) Attachment 5 – Pots and Pans Inventory to be cleaned

1.5.19.2 Monthly Inventory. The Contractor shall conduct a monthly inventory of dinnerware and silverware (e.g. soup/salad bowls, dinner plates, cups, glasses, forks and spoons) and submit Dinnerware and Silverware Inventory Report within 3 days to COR/TA.

1.5.19.3 Semi-Annual Inventory. The contractor shall also perform inventory of pots and pans (i.e. pots, pans, tongs, serving spoons, mixing bowls) every 6 months and submit Pots and Pans Inventory Report to COR/TA within 3 days of inventory.

1.5.19.4. Loss and Breakage. The Contractor shall investigate and submit Loss and Breakage Report within 3 days to the COR for loss and breakage exceeding 10% since the last inventory or replenishment. In the event

loss/breakage is found to be due to the fault or negligence of the Contractor, the Contractor may be held liable for the replacement cost.

1.5.19.5 Addition/Deletion of equipment. Equipment list is expected to vary within $\pm 5\%$ in quantity over the life of the contract. Any addition will be of approximately similar capacity, size, and function of deleted equipment.

1.5.20 MEAL HOURS:

* Contractor shall abide by the meal hours posted in TE 4 – List of Galley Meal Hours for each dining facility during the performance of this contract. Other conditions include:

1.5.20.1 Holiday Meal Hours. Dinner meals during Thanksgiving, Christmas, and Navy Birthday are thirty (30) minutes longer than the regular meal hours.

1.5.20.2 Extended Meal Hours (EMH) due to Emergency/Contingency Situations. Contractor shall continue to provide services described in Section 5.2 during extended meal hours (see Section 2.0 Definition) as a result of emergency or contingency situations (e.g. rescue operations, civil disturbances, natural calamity, installation alerts, and other unforeseen events) subject to following terms and conditions:

1.5.20.2a Extended meal hours (EMH) is between 1900 to 0500 P.S.T. following day; therefore, one (1) EMH Day is equivalent to extended galley operation of ten (10) hours.

1.5.20.2b A Firm Fixed Price Option CLINs of five (5) EMH Day (equal to quantity one (1) unit “Lot”) will be set up for the base year and succeeding option years (to be exercised as the need arises) for each galley.

1.5.20.3 Option Exercise Procedure.

1.5.20.3a. As the emergency/contingency requiring EMH Day is identified, the COR will communicate by phone and confirm by email the requirement to the Project Manager no later than one (1) hour before performance is to start.

1.5.20.3b. Project Manager shall communicate confirmation by phone and email to the COR and implement and manage performance of the requirement.

1.5.20.3c. COR will provide to the Contracting Officer funded NC2276/DD1149 to exercise the appropriate EMH Day Option CLIN within three (3) working days after the start of the service. The Contracting Officer will issue unilateral modification to the contract to exercise the option and add funding to the CLIN.

1.5.21 SURVEY: Contractor shall cooperate fully with the representatives of the Naval Supply Systems Command or other Department of Defense representatives that may, from time to time, conduct survey of services being performed under this contract for the purposes of evaluating for contract performance, the visited galley for award, or other recognition.

1.5.22 CONTRACTOR PERSONNEL: As this is a non-personal services contract, the Government shall not exercise any supervision or control over the contractor personnel performing the services. The contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government. The contractor shall provide following personnel:

1.5.22.1 Project Manager – Contractor or contractor employee assigned as overall in charge of this effort ensuring performance is in strict adherence of this contract; serve as liaison between contractor and Government; and provide required reports and other items as listed TE 2 – Deliverables Schedule.

1.5.22.2 Supervisor – supervise daily performance of contractor employees for each dining facility to ensure good quality service, discipline, and overall prompt and polite customer service; coordinate work schedules with COR/Technical Assistant and communicate schedules to contractor employees promptly; conduct personnel inspections for clothing, sanitation, and individual cleanliness, and report inspection findings to the COR/TA each morning; conduct training as prescribed herein; conduct a walk-thru of all food service spaces with the TA or FSO daily for cleanliness and general appearance; and provide required reports and other items as listed in TE 2 – Deliverables Schedule.

1.5.23 INVENTORY:

1.5.23.1 Initial Inventory. The Contractor and the COR/TA shall perform a joint inventory of galley spaces, furniture, equipment, dinnerware and silverware, and pots and pans that will be incorporated in this contract within fourteen (14) calendar days from contract award date, within one week after exercise of each contract option, and one week before contract end date. The contractor shall submit a copy of Galley Space Listing Report, Equipment/Furniture Inventory Report, Dinnerware and Silverware Inventory Report, and Pots and Pans Inventory Report jointly signed by contractor and COR/TA within three (3) days after completion of inventory. Reports shall provide enough information (to include material condition for spaces and equipment) that: they may be used by the Government for the administration of this contract; and for use by the contractor to be able provide proper accountability and planning for contract performance.

Notes:

Layout and list of galley spaces to be cleaned by the contractor is shown in TE – 5 and TE 6; list of government equipment to be cleaned by the contractor for each galley is shown in TE – 7; list of the mess gear to be cleaned by the contractor for each galley is shown in TE – 8;

1.5.23.2. Monthly Inventory. The Contractor shall conduct a monthly inventory of dinnerware and silverware (e.g. soup/salad bowls, dinner plates, cups, glasses, forks and spoons) and submit Dinnerware and Silverware Inventory Report within 3 days to COR/TA.

1.5.23.3 Semi-Annual Inventory. The contractor shall also perform inventory of pots and pans (i.e. pots, pans, tongs, serving spoons, mixing bowls) every 6 months and submit Pots and Pans Inventory Report to COR/TA within 3 days of inventory.

1.5.23.4. Loss and Breakage. The Contractor shall investigate and submit Loss and Breakage Report within 3 days to the COR for loss and breakage exceeding 10% since the last inventory or replenishment. In the event loss/breakage is found to be due to the fault or negligence of the Contractor, the Contractor may be held liable for the replacement cost.

1.5.23.5 Addition/Deletion of equipment. Equipment list is expected to vary within $\pm 5\%$ in quantity over the life of the contract; any addition will be of approximately similar capacity, size, and function of deleted equipment.

PART 2

DEFINITIONS & ACRONYMS

2. **DEFINITIONS AND ACRONYMS:**

2.1. **DEFINITIONS:**

2.1.1 BOX LUNCH. One meal ration of food, hot or cold, placed in cardboard box or other appropriate container, to be eaten offsite by authorized personnel; ordered by customer activity a day before scheduled pickup; issue accounted for on Recapitulation of Meal Record (NAVSUP Form 1292).

2.1.2 BUSINESS DAY. Calendar day when galley is operational (i.e. preparing and serving meals to patrons); Monday through Sunday; typically between the hours of 0500 and 1900.

2.1.3 CONTRACTOR. A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.4. CONTRACTING OFFICER. A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the government.

2.1.5. CONTRACTING OFFICER'S REPRESENTATIVE (COR). An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.6. DEFECTIVE SERVICE. A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.7. DELIVERABLE. Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

2.1.8 DUAL-HATTED. Employee performing two jobs alternately – e.g. 3 hours as Supervisor/Quality Control Manager (QCM), and 5 hours as Mess Attendant.

2.1.9 RATION ENTITLEMENT VERIFICATION SYSTEM (REVS). REVS is a Point of Sale and inventory control information system for retail stores.

2.1.10 EXTENDED MEAL HOURS. Galley's continuous operation beyond the normal business day as a result of emergency or contingency situation; between the hours of 1900 to 0500 the following day.

2.1.11 INVITING ENVIRONMENT. Environment that is safe, clean, and orderly; free of chaos.

2.1.11 KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel

are used as an evaluation factor, an offer may be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.12 FOOD SERVICE ATTENDANT SERVICES. Contractor personnel identified under labor categories such as Food Service Sanitation Specialist, Salad Maker, Cashier, Pot and Pan Washer, and/or Food Vehicle Driver.

2.1.13 PHYSICAL SECURITY. Actions that prevent the loss or damage of Government property.

2.1.14 PICNIC RATION. Ration of food items, cooked or un-cooked, to be eaten off-site, for a set number of authorized personnel; normally packed in appropriate galley mess gear; issue accounted for by use of Recapitulation of Meal Record (NAVSUP Form 1292).

2.1.15 QUALITY ASSURANCE. The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.16 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.17 QUALITY CONTROL. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.18 SCULLERY SERVICE. Dishwashing service through use of dish machine and manual (hand) washing; handling of food wastes; and storing cleaned mess gear.

2.1.19 SPECIAL MEAL. Any meal served in the VIP room for any special event - e.g. troop morale events (such as birthday month), organized conferences, and any other event that requires meal.

2.1.20 TECHNICAL ASSISTANT (TA). Assigned by the Contracting Officer to assist and support the COR in executing routine administration and monitoring duties only; does not have authority to provide technical direction, or make changes to the contract.

2.2. ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
CNRSW	Commander Navy Region South West
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTS	Commercial-Off-the-Shelf
DFARS	Defense Federal Acquisition Regulation Supplement
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
NAVMED	Naval Medicine
NAVSUP	Navy Supply Systems Command
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
POC	Point of Contact
PRS	Performance Requirements Summary

PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Plan
TA	Technical Assistant
TE	Technical Exhibit
DBIDS	Defense Biometric Identification System

PART 3

GOVERNMENT FURNISHED ITEMS AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES: The government will provide the facilities, equipment, materials, and services listed in the paragraphs below.

3.1 Operational Control. Government will retain operational control of the galleys through the assigned Food Service Officers (FSO) for each galley. Decisions made by FSO will be communicated to contractor via the COR. FSO cannot make any changes to this contract nor provide direction to the contractor.

3.2 Facilities: The government will provide the facilities described in Technical Exhibit 6,:

3.2.1 Contractor Project Manager and Supervisor: The Government will provide desk space and chair.

3.2.2 Government Furnished Equipment (GFE): The Government will provide equipment listed in Attachment 4. GFE issued to contractor under this contract are incidental to the place of performance and remains accountable to the Government (FAR 45.000(b)(5) exception) and shall remain in the Government facility at all times.

3.2.2.1 An inventory of government provided equipment shall be conducted on the date provided by the COR at time of award. The Contractor and the COR shall conduct a joint inventory of all government-provided equipment. Items of equipment missing or not in working order shall be recorded and the Contracting Officer notified in writing. The Contractor and the COR shall jointly determine the working order and condition of all equipment and document their findings on the inventory.

3.3 Utilities: All utilities in the facility will be available for the contractor's use in performance of the tasks outlined in this PWS. The Contractor shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after each use.

3.4 Subsistence: the Government provides all food.

3.5 Materials:

3.5.1 The Government will provide materials such as chinaware, glassware, cutlery, utensils, etc. These materials shall be inventoried at least once a month. See the PWS 1.5.19.

3.5.2 All cleaning supplies: wax stripper, wax, detergent, buffing pads, sponges, sanitizing cleaners, and cleaning towels/rags.

3.5.3 All head (bathroom) supplies: toilet paper, paper towels, paper toilet seat cover/barrier, urinal deodorizer, and hand soap, and dispensers. Should the contractor become aware required supplies are below a weeks' worth of support, the contractor shall notify the COR within (1) calendar day.

3.5.3 Access to electronic and/or hard copy of all publications and directives prescribed herein.

3.6 Government Furnished Services

3.6.1 The Government is responsible for grounds maintenance and refuse collection, per NAVFAC schedule.

3.6.2 Training. The Government will provide initial 2 hour sanitation instruction and subsequent semi-annual refresher training to contractor employees within 10 working days from contract award.

Note: Government will plan, procure, store, account, and prepare/cook all food items mentioned under this contract to include food items for replenishing emptied containers in serving lines and dining areas, box lunches, and picnic rations. Under no circumstances that contractor will provide any food items under this contract.

PART 4

CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all personnel, equipment, and services required to perform work under this contract

4.2 The contractor shall provide to its employees all office equipment and supplies necessary in the performance of this contract including (but not limited to) copier, fax machine, computer, calculator, paper, writing instruments, file folders, etc.

4.3 Employee Uniforms. All contractor personnel shall wear uniforms supplied by the Contractor while on duty and must clearly identify they are contractor employees and not Government associated. Uniforms shall be well fitting, laundered, properly maintained and in good condition, not stained or faded, no paint or improper markings, not torn, no holes, not extremely wrinkled, no missing buttons or zippers, properly hemmed. Appropriate undergarments shall be worn at all times. Other uniform related items include:

4.3.1 Nametags. All contractor employees shall wear Contractor-furnished nametags displaying the company name and employee's last name. Nametags worn by the Contractor supervisors shall also indicate their job title.

4.3.2 Miscellaneous uniform items. Hairnets, facial masks, aprons and caps shall be supplied by the Contractor, and shall be worn by Contractor personnel where appropriate, in accordance with NAVMED P-5010-1, Tri-Service Food Code. Contractor employees shall wear acceptable hair restraints (hats, caps, hair nets) furnished by the Contractor, to prevent loose hair falling into food or onto food contact surfaces. These restraints shall cover the entire hair area.

4.4 Medical Fitness. The Contractor shall furnish personnel who are medically fit for their work. Contractor employees with open lesions, particularly on the hands or wrists, unless an impermeable cover such as a finger cot or stall protects the lesion and a single-use glove is worn over the impermeable cover on exposed portion of the arms, unless the lesion is protected by an impermeable cover, or other parts of the body, unless the lesion is covered by a dry, durable, tight fitting bandage, shall be prohibited from performing food service duty. The contractor shall exclude or restrict a food employee from the food establishment in accordance with the restrictions in NAVMED P-5010-1, Tri-service Food Code, section 2-201.

4.4.1 All Contractor food service employees are subject, at any time, to inspection and physical examination by Government medical authorities to ensure proper sanitary standards are maintained.

4.4.2 Medical Certificates. A medical certificate from a US licensed medical practitioner shall be available for review by the COR, TA or other government representatives for each employee assigned to work in the scullery and pots and pans room, dining area and any food handling facility, or any Contractor employee whose duties include handling food in the performance of this contract, prior to the employee's start date. The medical certificates shall be furnished at Contractor expense, and shall certify that the employee is free from any communicable disease. Subsequent physical examination shall be conducted annually. The physical examinations shall be sufficiently comprehensive to detect acute or chronic diseases. The physical examinations shall also include a chest X-ray. All contractor personnel shall be cleared by their private or contract physician utilizing the Report of Medical History (SF-93) and Certificate of Medical Examination (SF-78) or other documentary evidence, acceptable to the local Regional Medical Clinic (NMRC). The report/certificate shall certify that an employee is free from any

communicable diseases especially evidence of tuberculosis. These forms are to be made available to the medical staff via Food Service Officer, prior to assignment of contract personnel. (Note: Medical Officer may at his discretion require serology and stool examinations). Copies of the medical certificates shall be maintained at the duty location.

4.4.2.1 A medical certificate from a US licensed medical practitioner shall be available for review by the COR or TA for each employee assigned to work in the scullery and pots and pans room, dining area and any food handling facility, or any Contractor employee whose duties include handling food in the performance of this contract, prior to the employee's start date. The medical certificates shall be furnished at Contractor expense, and shall certify that the employee is free from any communicable disease.

4.4.2.2 Any Contractor food service employee absent from duty for 30 days or more for any reason shall have a medical examination at Contractor expense prior to resumption of duty. Any Contractor food service employee absent from duty for less than 30 days for any medical reason may be required to have a medical examination at Contractor expense prior to resumption of duty, in accordance with NAVMED P-5010 and Tri-Service Food Code.

4.5 Employee Meals. Contractor employees are authorized to use the general mess for meals while on duty. All meals consumed by Contractor employees shall be paid prior to consumption at the established rate charged the Navy enlisted personnel on commuted rations as set forth by directives of the Navy Supply Systems Command. Meal payments shall be made by the employees in cash or credit card. Contractor employees, while on duty, shall eat prior to published meal hours. Meals must be consumed on the premises; no food/meals may be taken out of the dining facility. (NOTE: Meals consumed by the contractor will not be included in total count of meals served to galley patrons).

4.6 Training Requirements. Aside from training mentioned under this section, the Contractor shall develop and shall be responsible for the cost of the training requirements of all Contractor employees. The Contractor shall provide food service personnel with continuous on-the-job training and instruction in addition to the initial and refresher training. All training shall be accomplished or conducted during times that do not interfere with the contracted work. Records of all employee annual training including attendance rosters shall be maintained for one year by the Contractor and be furnished to the COR for review. Training records shall be reviewed at least every six months. Other training requirements as follows:

4.6.1 Personnel Sanitation. The Contractor is responsible for the contractor's workforce receiving appropriate sanitation training. Sanitation training is at no cost to the contractor and is typically conducted by the Site Manager. Such training should be completed within one month after the starting date of the contract and annually within one month of the contract anniversary date. The Contractor shall insure that all employees working under this contract receive personal hygiene orientation training prior to first work day. All employees must practice, meet, and maintain proper standards. Beards and jewelry (except wedding rings) are not permitted. Sanitation training may be conducted by medical department personnel, environmental health officers, environmental sanitation officers, preventative medicine technicians or other government personnel qualified to conduct food sanitation training. All sanitation training must meet the requirements of NAVMED P-5010-1, Tri-Service Food Code. Training completion must be documented and available for review by COR or other government representative.

4.6.2 Miscellaneous Training. Miscellaneous Training. Contractor shall ensure their personnel (by assignment) are trained to meet sanitation, safety, and security, proper equipment, supply usage and customer service procedures per SECNAV Instruction 4061.1 series "Food Service Sanitation Training Program."

4.6.3 Training Plan. Contractor shall submit a Training Plan with the proposal and will be subject to evaluation. The plan shall address the following areas: Annual OSHA training; Sanitation; Participation in Government-conducted fire drills; and Certification process for Food Service Equipment Operation. The plan shall include the mandatory training requirements of the NAVMED P-5010-1, Tri-service Food Code. The Plan must address details to include who will conduct the training, the schedule for such training, the rationale for the frequency of the training sessions, and, if training is conducted by the offeror, the plan should identify the basis of the curriculum.

4.7 Transition Plan. The offeror contractor shall provide a Transition Plan with the proposal subject to evaluation. The plan shall: demonstrate that the offeror has the ability to ensure adequate personnel are hired and are available prior to contract start date; demonstrate how the offeror proposed to provide a seamless transition from previous contract to the new contract by the contract start date; and include a timeline chart that details significant event anticipated during the phase-in period.

4.8 Cleaning and Housekeeping Plan (CAHP). CAHP shall be prepared by contractor for each galley and submitted as part of the proposal for evaluation. The CAHP must incorporate the requirements of NAVMED P-5010-1, Tri-service Food Code, and Food Service Management, NAVSUP P 486. The Plan must include: cleaning and housekeeping schedules and frequencies of all areas of consideration (serving lines, dining room, restrooms, storage areas, loading docks, passageways, scullery, etc.); “deep cleaning” tasks (carpets, flooring, ductwork, grease traps, deck drains, drapery, fixtures, walls, ceiling fans, outdoor patios, etc.); routine and daily cleaning tasks at each individual facility. (Lay-out and list of galley spaces to be cleaned by the contractor is shown in TE –6.)

PART 5

SPECIFIC TASKS

5. Specific Tasks:

- 5.1. BASIC SERVICES. The Contractor shall, except as specified in this Performance Work Statement (PWS), provide all personnel, supervision, transportation, and any items and services necessary to perform food service attendant services in support of the dining facilities at NBVC Port Hueneme and Point Mugu. Contractor shall perform the requirements in this PWS and conform to the professional standards identified in this contract. Furthermore, the Contractor shall perform in accordance with commercial standards and comply with all applicable federal, state and local laws, regulations, instructions, and directives identified in this PWS. Contractor shall provide Food Service Attendant services described below in strict compliance with applicable sections in most current edition/version of NAVMED P-5010 Tri-Service Food Code..

In special situations, such as base closures as result of man-made or natural emergency, the Contractor shall continue to perform all required tasks as directed by the Contracting Officer. All Contractor personnel performing under this contract may be diverted to box lunch preparation as the COR deems appropriate. See referenced DFARS Clause 252.237-7023 and provision 252.237-7024. Extra Meal Hours (EMH) described in PWS 5.3.2 below, although may be triggered by the same event, is performed after normal working hours – 1900 hour to 0500 hr.

5.1.1 Cashier Services.

5.1.1.1 Contractor shall perform cashier duties for each meal to maintain a minimum flow of five (5) customers per minute. Contractor personnel performing cashier services shall service all customers in line at the close of the meal period.

5.1.1.2 Contractor shall provide sufficient number of cashiers for all meals at each location. See Attachment 1 – “List of Galley Meal Hours, Serving Lines and Cashier Stations” for cashier schedule and manning requirements at each location. Contractor shall maintain control of the cash registers at all times during meal periods.

5.1.1.3 Contractor shall verify the customer’s entitlement to use the dining facility via the Ration Entitlement Verification System (REVS). Cashiers required IT level III access, unclassified non sensitive, non PII access, non PKI services, no email and no network storage.

NOTE: Cashiers are required to submit a T1 for IT-III access for Galley cashier contractors with validation of U.S. Citizenship. In addition, upon *Risk Based Decision (RBD) Approval* validate PART III SECMAN section on SAAR-N for NMCI and REVS.

5.1.1.4 Contractor shall turn in all credit card sales to Collection Agent (i.e. authorized Government personnel) daily, except during weekends and holidays. Weekend and holiday sales will be turned in the following work day;

5.1.1.5 Contractor shall record attendance at each meal and then prepare and submit the Recapitulation of the Meal Record (NAVSUP Form 1292) on daily basis; and

5.1.1.6 Contractor shall maintain records capable of supporting the Food Service Officer’s accountability requirements (i.e. Chapter 2201, ACCOUNTING FOR MEAL SALES, under NAVSUP P486).

5.1.2 Food Service Attendant services. Contractor shall provide:

5.1.2.1 Serving line and dining area that promotes sanitary, safe environment, and efficient display and distribution of food items, condiments, dishware, and silverware fifteen (15) minutes prior to each meal. Serving line typically includes beverage, salad, dessert, and fruit bars; dining area includes furniture, equipment, and mess gear.

5.1.2.2 Preparation of Box Lunches (see Section 2 – Definitions) for issue to customer as scheduled;

5.1.2.3 Preparation of Picnic Rations (see Section 2 – Definitions) for issue to customer as scheduled;

5.1.2.4 Distribution of food on the serving line to galley patrons in standard portion sizes in accordance with applicable Navy recipe cards.

5.1.2.5 Sufficient personnel to ensure that patrons at the dining facilities are served at the rate of six (6) customers per minute on each serving line. The number of serving lines required at each location is set forth in Attachment 1 – “List of Galley Meal Hours, Serving Lines and Cashier Stations”

5.1.2.6 Continuous monitoring of the serving line and dining area ensuring that:

5.1.2.6.1 Food, condiments, and beverages are replenished throughout the meal hour;

5.1.2.6.2 Vacated tables are cleaned and sanitized for the next patron’s use (note: patrons bus their own tables);

5.1.2.6.3 Food, beverage, and other spills are promptly cleaned up; and

5.1.2.6.4 Filled racks with used trays and dishes are moved to scullery room for cleaning. Attendants shall monitor racks frequently enough to ensure there are no rack overflows.

5.1.3 Scullery Services. Contractor shall provide scullery services during and after meal hours ensuring dishes and mess gear used for feeding are clean and ready for the ongoing and following meal hours. Services include:

5.1.3.1 Operation of the dish (scullery) machine;

5.1.3.2 Cleaning of mess gear not appropriate for the dish machine using the deep sink;

5.1.3.3 Storage of cleaned gear in appropriate storage area; and

5.1.3.4 Replenishments of plates, cups, glasses, trays and silverware dispensers prior to and during meal periods.

5.1.4 Housekeeping Services. The contractor shall provide cleaning services to galley spaces, equipment, and furniture in accordance with the standards and procedures established in Food Service Management NAVSUP P-486, Tri-Service Food Code, and NAVMED P-5010-1. (See Attachment 2 – Galley Layout Diagrams and Measurements, and Attachment 3 – Mess Gear Inventory.) Additional guidelines as follows:

5.1.4.1 Cleaning and Housekeeping Plan (CAHP). CAHP shall be prepared by contractor for each galley and submitted as part of the proposal for evaluation (see section 4.8 above). All cleaning services shall be performed in accordance with the CAHP.

5.1.4.2 Contractor shall provide cleaning service in dining and scullery area to include floors, walls, tables, chairs, salad bar, food and beverage dispensers, dessert and beverage counters, cabinets, serving lines, and equipment after each meal.

5.1.4.3 Spot Cleaning. The Contractor shall spot clean floors to ensure food spills and debris are removed immediately and to promote a clean and safe working environment. The Contractor shall post “Caution” signs on wet floors.

5.1.4.4 Floors. The Contractor shall clean all floors, floor mats and runners so that no visible dirt or dust remain. The Contractor shall also ensure there is no visible dirt behind doors, under furniture and equipment, or on table legs/booths. The Contractor shall not place chairs on tables at any time. When vacuuming, the Contractor shall ensure all visible litter, gum, soiled areas and spots are removed. When damp mopping, the Contractor shall ensure all dirt, food residue, marks, film, streaks, debris, and standing water from floors are removed.

5.1.4.5 Heads (i.e. bathrooms). Contractor shall provide cleaning service to the heads daily and spot check the heads hourly during meal times to maintain sanitary conditions. Service includes maintaining cleanliness of the floor, wall, commodes, and urinals; replace urinal deodorizers when empty; refill hand soap, toilet paper, paper towel, and seat cover dispensers as necessary; and empty trash.

5.1.4.6 Galley Surroundings. Contractor shall maintain the cleanliness (i.e. free of trash) of galley surroundings – i.e. within 10 feet of the outside perimeter of the galley building.

5.1.4.7 Trash Removal. Contractor shall provide removal of all trash and recyclable trash from the galley spaces for disposal to containers located within the perimeter (outside) of the galley building daily. Contractor shall follow local or statewide recycling program requirements.

PART 6

APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS):

6.1. The Contractor must abide by applicable sections in regulations, publications, manuals, and local policies and procedures as follows:

6.1.1 NAVSUP Food Service Management General Messes – Volume 1 and Volume 2 Publication 486 Revision November 2020

6.1.2 NAVMED P-5010 Tri-Service Food Code; March 2019

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Standard	Performance Threshold	Method of Surveillance
PRS # 1 The contractor shall provide Cashier Services with accurate accounting of DD 1544 / DD 1544E turn-ins on a daily basis in accordance with (IAW) PWS 5.1.1	The contractor provided Cashier Services with accurate accounting of all DD 1544/ DD 1544E turn-ins on a daily basis (IAW) PWS 5.1.1	Zero deviation from standard	100% Inspection daily during cash turn-in; COR/TA
PRS # 2 The contractor shall provide Food Service Attendant services attentively in polite and courteous manner IAW PWS 5.1.2	The contractor provided Food Service Attendant services attentively in polite and courteous manner.	No more than two (2) validated customer complaint monthly	Validated Customer Complaint; COR/TA
PRS # 3 The contractor shall provide Scullery Services in a prompt and conscientious manner IAW PWS 5.1.3	The contractor provided Scullery Services in a prompt and conscientious manner	No more than three discrepancies on gear, pots, pans, and equipment cleanliness per month	Validated Customer Complaint; COR/TA Random Sampling of cleaned gear once weekly; COR/TA
PRS # 4 The contractor shall provide Galley Cleaning Services IAW PWS 5.1.4	The contractor provided Galley Cleaning Services	- No more than two (2) major discrepancy on space inspection monthly - No more than one (1) “unsatisfactory”* grade on cleanliness of space during daily walk-thru *Maybe turned to “satisfactory” if discrepancy corrected before meal hours	Periodic space inspection monthly; COR/TA 100% Inspection – daily walk-thru of spaces for cleanliness; COR/TA
PRS # 5 The contractor shall provide management of its own personnel IAW PWS 1.5.22	The contractor provided management of its own personnel	- Zero discrepancy on daily personnel inspection	100% Inspection – daily personnel inspection

DELIVERABLES**TECHNICAL EXHIBIT 2****DELIVERABLES SCHEDULE**

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Quality Control Plan (QCP) PWS 1.5.1	Submit with proposal package on or before Solicitation Close date	1 Original	MS Word or MS Excel Spreadsheet	Contracting Officer
Training Plan PWS 4.6.3	Submit with proposal package on or before Solicitation Close date	1 Original	MS Word or MS Excel Spreadsheet	Contracting Officer
Transition Plan PWS 4.7	Submit with proposal package on or before Solicitation Close date	1 Original	MS Word or MS Excel Spreadsheet	Contracting Officer
Cleaning and Housekeeping Plan (CAHP) PWS 4.8	Submit with proposal package on or before Solicitation Close date	1 Original	MS Word or MS Excel Spreadsheet	Contracting Officer
Medical Certificate; include name and date (period) of absence or hire PWS 4.4	1) Submit prior to contract start date 2) personnel absence of more than 30 calendar days 3) new hire 4) Annually from date of last examination.	1 Original and 1 Copy	As applicable	COR/TA
Personnel Training Report (include all completed required training) PWS 4.6	Annually	1 Original and 1 Copy	MS Word or MS Excel Spreadsheet	COR/TA
Recapitulation of the Meal Record (NAVSUP Form 1292e) PWS 5.1.1	Daily	1 Original and 1 Copy	NAVSUP Form	COR/TA
Initial Inventory - Galley Space Listing Report, Equipment/Furniture Inventory Report, Dinnerware and Silverware Inventory Report, and Pots and Pans Inventory Report – PWS 1.5.19	Inventory freq: Initial, option exercise, and end of contract; submit report within 3 calendar days after each inventory	1 Original and 1 Copy	MS Word or MS Excel Spreadsheet	COR/TA
Dinnerware and Silverware Inventory Report PWS 1.5.19.2	Monthly; submit report within 3 calendar days after each inventory	1 Original and 1 Copy	MS Word or MS Excel Spreadsheet	COR/TA
Pots and Pans Inventory Report	Semi-Annually; submit Report within 3 calendar	1 Original and 1 Copy	MS Word or MS Excel Spreadsheet	COR/TA

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
PWS 1.5.19	days after each inventory			
Loss and Breakage Report PWS 1.5.19.4	Within 3 calendar days after last scheduled inventory when 10% breakage was discovered.	1 Original and 1 Copy	MS Word or MS Excel Spreadsheet	COR/TA

ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. Attachment/Technical Exhibit List:

- 7.1 Technical Exhibit 1 – Performance Requirements Summary
- 7.2 Technical Exhibit 2 – Deliverables Schedule
- 7.3 Attachment 1/Technical Exhibit 4 – List of Galley Meal Hours
- 7.4 Attachment 2/Technical Exhibit 5 – Galley Spaces Measurements
- 7.5 Attachment 3/Technical Exhibit 6 – Galley Layout Diagram
- 7.6 Attachment 4/Technical Exhibit 7 – Equipment/Furniture List
- 7.7 Attachment 5/Technical Exhibit 8 – Mess Gear Inventory

(1) SUPTXT204-9400(3-19) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY SYSTEMS OR PROTECTED HEALTH INFORMATION

The following shall be inserted in full text in all solicitations and contracts (including commercial acquisitions) which require contractor unclassified access to federally controlled facilities, sensitive information, Information Technology (IT) systems or protected health information. For commercial acquisitions, this text shall be incorporated into either the SOW or PWS.

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This clause does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. The clause is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. Visit Authorization Request (VAR)
- b. Contractor Information Sheet (CIS)
- c. FD-258 Fingerprint Card
- d. Completed Electronic Investigation (EQIP)
- e. All contractor resource(s) must have an active Joint Personnel Adjudication System (JPAS) profile
- f. Common Access Card(CAC)

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In Accordance With (IAW) Secretary of the Navy (SECNAV) M-5510.30, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as IT-I, IT-II, or IT-III. The IT-II level, defined in detail in SECNAV M-5510.30, includes positions which require access to sensitive information. Sensitive information includes information protected under the Privacy Act, to include PHI. All contractor employees under this contract who require access to Privacy Act protected information are therefore categorized no lower than IT-II. IT Levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged or IT-I level access, (when specified by the terms of the contract) require a Single Scope Background Investigation (SSBI) or T5 or T5R equivalent investigation, which is a higher level investigation than the National Agency Check (NAC) with Law and Credit (NACLC)/T3/T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator,

database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System (OS) or Computing Environment (CE) they are required to maintain.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM at least thirty (30) days prior to the individual's start date. Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. Contractor employees under this contract are recognized as Non-Critical Sensitive [ADP/IT-II] positions when the contract scope of work require physical access to a federally controlled base, facility or activity and/or requiring access to a DoD computer/network, to perform unclassified sensitive duties. This designation is also applied to contractor employees who access Privacy Act and PHI, provide support associated with fiduciary duties, or perform duties that have been identified as National Security Positions. At a minimum, each contractor employee must be a US citizen and have a favorably completed NACLC or T3 or T3R equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or IT-II position. The investigation consists of a standard NAC and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or IT-II position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards (or an electronic fingerprint submission)
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy command's ISSM/IAM. Completion and approval of a SAAR-N form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the Navy CSM at least thirty (30) days prior to the individual's start date. Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM; Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

If the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a VAR via the JPAS or a hard copy VAR directly from the contractor's security representative. Although the contractor will take JPAS owning role over the contractor employee, the Navy command will take JPAS "Servicing" role over the contractor employee during the hiring process and for the duration of assignment under that contract. The contractor shall include the IT position category per SECNAV M-5510.30 for each employee designated on a VAR. The VAR requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and
- Must have a favorably completed NACI or T1 investigation equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or an electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

* Consult with your CSM and ISSM/IAM for local policy when IT-III (non-sensitive) access is required for non-U.S. citizens outside the U.S..*

**Alternative language which may be included as appropriate:

Contractor and all Contractor personnel with access to or responsibility for XXXXXX of this contract shall comply with DoD Directive 8500.1E IA, DoDI 8510.01 Risk Management Framework (RMF) for DoD IT, DoD Directive 5400.11 DoD Privacy Program, DoD 5200.2-R Personnel Security Program and HSPD 12.

X.1 Be CAC ready at the IT Level II prior to reporting for work.

X.2 At minimum, all contractor personnel must possess/maintain a favorable Tier 3 investigation; formerly a NAC with Local Agency Check and Credit Check (NACLC). This requirement is critical in order to access the data base systems within NAVSUP. It is Contracting Companies; responsibility to ensure that 100% of the contractors have the Tier 3 investigation/IT Level II. In addition, interim approval of clearances is not authorized.

X.3 Be citizens of the U.S.

X.4 If at any time, any contractor person requiring a CAC is unable to possess/maintain an adjudicated Tier 3 investigation, the contractor shall immediately notify the NAVSUP COR to coordinate removal of such a person from work under this contract.

X.5 Contractor personnel with access to or responsibility for nonpublic government data under this contract must comply with HSPD-12 Personal Identity Verification (PIV) issuance requirements, known as the CAC for NAVSUP.